



**Testimony of the Multimodal Accessibility Advisory Council
Before the Committee on Transportation & the Environment
Council of the District of Columbia**

Performance Oversight Hearing — District Department of Transportation

February 18, 2026

Delivered by Dr. Karthik Balasubramanian, Chair

Chairman Allen, members of the Committee, thank you. I'm Karthik Balasubramanian, chair of the Multimodal Accessibility Advisory Council, representing people with disabilities in the District.

I have macular degeneration. I cannot drive. All of our other MAAC members cannot drive. We are in the majority of people with disabilities in the District of Columbia who do not or cannot operate a car. When DDOT's Director makes decisions about how to allocate street space, she is making decisions about whether I — and thousands of residents like me — can get where we need to go safely and with dignity. I want her to know that I experience every one of those decisions.

Before I discuss those decisions, I want to speak to the so many incredible DDOT employees who strive every day to make the District a better place. Who breathe the air here. Who deal with the consequences when safety is an afterthought to throughput. Who don't drive to work. Who fight the good fight every day trying to make this city's transportation network more efficient, more fair, more clean, more reliable, and more accessible. We salute you. We applaud you. We thank you for your valiant service in the face of constant undercutting from above.

Fatalities dropped from 52 to 25 last year. That happened because of those employees — not because of the Director's leadership. What I will describe today are two failures that reveal a Director's office that thinks car-first, and treats pedestrian safety, transit speed, and disability access as concessions to be negotiated against the assumed right of the private automobile to store itself on public land.

Daylighting

DCMR Title 18, Section 2405 prohibits parking within 40 feet of an intersection on the approach side and 25 feet on the departure side. No signs required. Every intersection. It is the law.

The District has roughly 7,000 intersections. The Director's office does not know how many comply. The DC Auditor confirmed the agency has no database tracking this. They have never systematically assessed it and are not trying to.

The MAAC wrote to Director Kershbaum. We laid out the law. We laid out the physics — DDOT's own manual requires a 30-by-30-foot clear sight triangle; a parked SUV eliminates it; at 25 miles per hour, if a pedestrian is hidden until 50 feet away, the collision is inevitable. We cited Hoboken — zero pedestrian fatalities for seven-plus years through universal daylighting. We asked for a plan.

The Director's office blew us off. They called daylighting "one of many treatments within our toolbox" — reframing compliance with existing law as optional. They said they are "unable to build a program" to address it. They suggested we keep filing 311 requests. One at a time. For 7,000 intersections.

That response tells you exactly how seriously this Director takes the advisory council the Council created to represent disabled residents. When a pedestrian is struck where the Director knew the law, knew the physics, knew the risk, and chose to do nothing — that is not an accident. It is a known hazard left in place. I would encourage this Committee to consider what that means for the District's liability the next time someone is killed at an intersection where a parked car blocked the sightline and the Director's office never checked whether its own law was being followed.

Bus Priority

The Director's office promised 25 miles of dedicated bus lanes by FY2025. They delivered 13.3. Fifty-three percent.

Only three corridors run around the clock. The rest — including flagship 16th Street — are peak-only. Five and a half hours a day. The other eighteen and a half hours, those lanes belong to parked cars — despite WMATA running 24-hour service on 14 routes.

These are not bus lanes. They are PLT OABs: parking lanes that occasionally allow buses.

The pattern is not new. Some of it predates the current Director's tenure — but the pattern has only deepened under her leadership. 7th Street downtown — one of the District's busiest north-south bus corridors, carrying Chinatown and Penn Quarter — was identified for bus priority years ago. It never happened. The 7th Street bus lane had signs and markings but zero enforcement. Cars used it as a travel lane and nobody stopped them. The southbound counterpart on 9th Street was removed entirely. Every time bus infrastructure meets resistance, the Director's office — this Director and her predecessors — folds. The lanes get proposed. They get watered down. They get erased. Always in the direction of giving space back to cars.

K Street confirmed the pattern. The community spent years in public engagement. DDOT completed final design: center-running bus lanes, protected bike lanes, a genuine urban boulevard. Then in April 2023 — at a budget hearing, not a project meeting, not through public engagement — the Director's office gutted the design at the Mayor's direction. Bike lanes ripped out.

Another car lane added. Years of community input reduced to one line on a slide so more cars could drive through downtown.

That was not a design revision. It was a surrender. And since that surrender, the Director's office has not proposed a single Bus Rapid Transit corridor anywhere in the District. Not one.

Richmond — population 230,000 — built the Pulse BRT for \$65 million. Indianapolis has the Red Line. Albuquerque has ART. Northern Virginia has adopted 28 BRT routes over 170 miles. Montgomery County is building Flash BRT. The nation's capital has zero BRT in operation, under construction, or proposed. This is not a money problem. It is a courage problem. It is a leadership problem.

The bus is by far the most efficient and accessible way to move people across the District. One bus replaces forty cars. A bus lane moves more people per hour than a general traffic lane. Every resident can ride a bus — including those of us who cannot drive. The Director's failure to prioritize bus infrastructure is not neutral. It is a choice about whose mobility counts.

Research on the Time Tax shows DC transit users face two to three times longer travel times than drivers for the same trip — 3.5 times in Ward 8. Disproportionately Black, low-income, disabled. The Director's office measures vehicle delay to the second but has never measured the time extracted from people who have no alternative to the bus. That tells you whose time counts.

The Root

Won't follow the daylighting law. Builds parking lanes that occasionally allow buses. Let 7th Street bus priority die without a fight. Gutted K Street to add a car lane. Hasn't proposed BRT since. One problem. One office.

The Director lives in DC. She is not an outsider. But the decisions coming out of her office consistently reflect the worldview of someone who experiences this city from behind a steering wheel. When you drive, daylighting looks like losing parking. Bus lanes look like losing road space. BRT looks like a provocation. When you ride the bus or use a wheelchair, those same things look like survival.

And the Director's instincts are reinforced by a calcified layer below. Twenty-seven percent of DDOT employees commute from out of state in their cars. They drive onto our streets every day — adding congestion, adding emissions, adding danger. They collect DC salaries. And they are the ones who scope the projects, run the traffic models, write the feasibility studies, and recommend whether a bus lane gets built or a sightline gets cleared. Their analysis, time after time, privileges drivers just like themselves.

What We Ask

First: require the Director to audit all 7,000 intersections against Section 2405 and present a compliance plan with annual benchmarks within 180 days.

Second: direct the Director's office to begin formal BRT planning on at least two corridors,

starting with 7th Street — the busiest bus corridor in the region — and Union Station to RFK. K Street's gutting is not a reason to stop. It is a reason to try again — this time in the open.

Third: annual ward-level reporting on daylighting compliance and 24/7 bus lane miles. What gets measured gets managed.

We are asking the Director to follow her own laws, keep her own promises, and build what far smaller cities have already built.

Thank you, Chairman Allen.

